

REAL ESTATE PURCHASE AND SALE AGREEMENT

THIS PURCHASE AND SALE AGREEMENT ("Agreement") is made as of **[[DATE]]** ("Effective Date") by and between:

- **SELLER:** **[[SELLER FULL LEGAL NAME(S)]]**, of **[[SELLER ADDRESS]]** ("Seller"); and
- **BUYER: Rich Fabiani, an individual, d/b/a FRESH GROUND, and/or assigns** ("Buyer").

Seller and Buyer are each a "Party" and together the "Parties."

1. Property

Seller agrees to sell and Buyer agrees to buy the real property and all improvements, fixtures, and appurtenances located at:

[[PROPERTY STREET ADDRESS]], [[CITY]], [[STATE]] [[ZIP]]

Tax Parcel / Map ID: **[[PARCEL ID]]** · Legal description: **[[LEGAL DESCRIPTION or "per title"]]** (the "Property").

2. Purchase Price

Total purchase price: **\$[[PURCHASE PRICE]]** ("Purchase Price"), payable in cash / certified funds at Closing. No financing contingency (see §7).

3. Earnest Money Deposit (EMD)

Within **[[3]] business days** after the Effective Date, Buyer shall deposit **\$[[EMD, e.g., 1,000]]** with the Settlement Agent (§8) to be held in escrow and applied to the Purchase Price at Closing.

4. Assignment

Buyer may **assign, transfer, or convey** all of Buyer's rights and obligations under this Agreement to any person or entity, **without further consent of Seller**, and upon such assignment and the assignee's assumption of Buyer's obligations, the original Buyer shall be released. Seller acknowledges Buyer may be a real-estate investor/wholesaler that intends to **assign this Agreement to a third-party purchaser for a fee** and consents to same.

5. Marketing / Access

Seller grants Buyer and Buyer's agents, contractors, and prospective assignees/end-buyers **reasonable access** to inspect, photograph, measure, and evaluate the Property during the term, on reasonable notice. Buyer may market its equitable interest in the Property to prospective assignees.

6. Feasibility / Inspection Period

Buyer shall have **[[10]] calendar days** from the Effective Date ("Feasibility Period") to, at Buyer's sole discretion and expense, investigate the Property — including title, zoning, buildability, lot yield, utilities, soils, permits, and value. **Buyer may terminate this Agreement for any reason or no reason** by written notice on or before the end of the Feasibility Period, whereupon the EMD shall be **refunded in full** to Buyer and neither Party shall have further obligation.

7. Condition of Property — AS-IS

The Property is sold **strictly "AS-IS, WHERE-IS,"** with all faults. Buyer relies on its own investigation (§6), not on any representation of Seller except as expressly stated herein. No financing contingency — this is a cash purchase.

8. Closing

- **Closing Date:** on or before **[[CLOSING DATE / "___ days after Effective Date"]]**, time being of the essence.
- **Settlement Agent / Title Company:** **[[TITLE COMPANY NAME + CONTACT]]** ("Settlement Agent").
- Seller conveys **marketable, insurable title** by **[[special/general warranty]] deed**, free of liens/encumbrances except permitted exceptions.
- **Closing costs:** each Party pays its customary costs; **[[grantor's tax / recording per local custom]]**. Buyer pays title insurance premium unless stated otherwise.
- Real estate taxes, HOA dues, and assessments prorated as of Closing.

9. Seller Representations

Seller represents, to Seller's knowledge: (a) Seller has full authority to sell; (b) no undisclosed leases, tenancies, or parties in possession except **[[NONE / list]]**; (c) no pending litigation, code violations, or liens except **[[NONE / list]]**; (d) Seller will maintain the Property in its current condition until Closing.

10. Default

- **Seller default:** Buyer may (i) terminate and recover the EMD, (ii) pursue specific performance, or (iii) pursue remedies at law.
- **Buyer default:** Seller's sole and exclusive remedy is to retain the EMD as liquidated damages, the Parties agreeing actual damages are difficult to determine.

11. Wholesaler Disclosure

Buyer discloses that Buyer is a **real-estate investor acquiring the Property with the intent to resell or assign this Agreement to a third party for profit**, and that Buyer is **not** acting as a licensed real-estate broker on Seller's behalf.

12. General

Time is of the essence. This Agreement is the entire agreement, supersedes prior discussions, and may be amended only in a signed writing. It binds the Parties' heirs, successors, and **permitted assigns**. Governed by the laws of the **[[STATE]]**. Electronic signatures and counterparts are valid and binding. Notices to the addresses below (email sufficient).

SIGNATURES

SELLER

Signature: _____ Date: _____

Print: **[[SELLER NAME]]** · Phone: **[[]]** · Email: **[[]]**

BUYER — Rich Fabiani d/b/a FRESH GROUND

By: _____ Date: _____

Name: **[[Rich Fabiani]]** · Phone: **[[]]** · Email: **[[]]**